

25STCV19541 25STCV19541

County: los-angeles

Division: Civil Law and Motion

Department: 413

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Case Number: 25STCV19541 Hearing Date: July 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/14/2026

CASE NUMBER: 25STCV19541

CASE NAME: MARIA DE JESUS GUZMAN vs
GENERAL MOTORS, LLC.

MOVING PARTY: Defendant General Motors, LLC

OPPOSING PARTY: Plaintiff Maria De Jesus Guzman

PROCEEDING: Motion for compliance pursuant to Code civ. proc. § 871.26 and sanctions

RULING SUMMARY: Defendant General Motors, LLC's Motion for Compliance
Pursuant to Code Civ. Proc. § 871.26 and Request for Sanctions is granted

A sanction of \$1,500.00 is imposed on Plaintiff's attorney
of record, Aylana Dias, to be paid within 30 days of this Ruling.

Background

On June

30, 2025, Plaintiff Maria De Jesus Guzman ("Plaintiff") filed her Complaint
against Defendant General Motors, LLC ("Defendant") alleging five causes of
action for: (1) Violation of Subdivision (d) of Civ. Code § 1793.2; (2)
Violation of Subdivision (b) of Civ. Code § 1793.2; (3) Violation of

Subdivision (a)(3) of Civ. Code § 1793.2; (4) Breach of Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement – Concealment.

After

its Demurrer was overruled, Defendant filed a Demurrer, subsequently overruled, Defendant filed its Answer on February 18, 2026, and a duplicate Answer on February 20, 2026.

On

April 22, 2026, Defendant filed this Motion for Compliance pursuant to CCP § 871.26 and Request for Sanctions (“Motion for Compliance”) on November 10, 2025. On June 23, 2026, Plaintiff filed her Opposition. Defendant filed its Reply on July 02, 2026.

LEGAL STANDARD – Code Civ. Proc. § 871.26 RE:

Depositions

Under Code of Civil Procedure

section 871.26(c):

Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

(1) The plaintiff.

(2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i).

Discovery is stayed until

mediation is concluded with the exception of (1) initial disclosures as outlined in subdivision (b), and (2) initial depositions as outlined in subdivision (c). (Id. subd. (e).)

The Legislature has provided the

following should a plaintiff fail to comply with initial deposition procedures:

A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction

against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(Id. subd. (j)(2).) Repeated noncompliance by a plaintiff may lead to dismissal of the action without prejudice. (Id. subd. (j)(3).)

DISCUSSION

As of the date of the hearing on this motion, it appears that (1) no initial deposition of Plaintiff has occurred as Plaintiff objected to the Notice of Deposition based on unilateral notice (Decl. Sanja Stark ("Stark") ¶ 6; see also Opp. at 1:15-19); (2) There are disputes as to meet and confer attempts (see Decl. Stark ¶¶ 7-12 and compare with Decl. Jana Perks ¶¶ 3-4); (3) no deposition has been scheduled as of the filing of the Opposition (see Opp. at 2:10-20 and Decl. Perks ¶ 3); and (4) a deposition has been scheduled for July 9, 2026 as of the filing of the Reply (see Decl. Kaitlyn Lasater ¶ 3).

While Plaintiff argues that her objections to a unilaterally noticed deposition date are justified, she has offered no authority to support her objection based on the deposition having been set unilaterally. While civility guidelines provide that counsel should cooperate in setting deposition dates, Depositions may be noticed by a party under the Discovery Act.

Code of Civil Procedure section 871.26(c) is clear – within 120 days after the filing of the answer or other responsive pleading, Defendant had the right to conduct an initial deposition of Plaintiff. Defendant's initial responsive pleading was filed on November 10, 2025, and 120 days thereafter was March 10, 2026. As no initial deposition occurred by March 10, 2026, sanctions are appropriate because the statutorily-provided deposition has not occurred.

Accordingly, the Motion for Compliance is granted. A sanction of \$1,500.00 is imposed on Plaintiff's attorney of record, Aylana Dias.

Conclusion;

Defendant General Motors, LLC's

Motion for Compliance pursuant to Code Civ. Proc. § 871.26 and Request for Sanctions is granted. Sanctions of \$1,500.00 are imposed on Plaintiff's attorney of record, Aylana Dias, to be paid within 30 days of this Ruling.

Date: 07/14/2026 _____¿

William E. Weinberger

Judge, Los Angeles Superior Court